

B.C. government urged to investigate Kamloops professor's suspension

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Updated: September 28, 2018

<https://vancouversun.com/news/local-news/b-c-government-urged-to-investigate-kamloops-professors-dismissal>

A B.C. academic has called on the provincial government to force the president of Thompson Rivers University to answer questions about the suspension of an economics professor over his paper exposing fake scholarly journals.

But the minister responsible for universities said the province is required by law to not interfere with the running of B.C.'s universities and refused to wade into the complicated controversy.

Derek Pyne, professor at Thompson Rivers University (TRU), remains on unpaid leave for what the university has called his use of "defamatory language and accusations" after he published a paper stating that several of the Kamloops university's administrators and faculty had been published in journals without professional credentials. He also wrote that many of those publishing in fake journals were often awarded with research grants or promotions.

Postmedia is not detailing the accusations for legal reasons.



Thompson Rivers University economist Derek Pyne is suspended without pay after alleging that other administrators and faculty at the Kamloops university had been published in fake journals. PNG

Pyne, 54, has been locked in the dispute with TRU, its human resources department and some faculty since he published a paper reporting almost half of the university's three dozen business and economics profs and administrators had published articles in questionable research journals. Articles submitted for publication, unlike those in respectable journals, aren't reviewed by other academics and authors are usually charged fees.

Pyne wrote in a newspaper article before his paper came out in April 2017 that his work created "friction" with the dean, and he said he was surprised the university did nothing to verify or address the issue.

University president Alan Shaver declined to comment and spokeswoman Darshan Lindsay said in an email the school was not commenting.

"We are legally bound to protect the personal and private information of employees," Lindsay said.

On May 17, Pyne was banned from the university's Kamloops campus and on July 17 suspended without pay and the university.

TRU's faculty association declined to comment to Postmedia.

Michael Byers, a political-science professor at the University of B.C., called for the government to intervene.

"There's no way in the world he (Pyne) should have been suspended for what he wrote," said Byers.

"I just read the article. I can't imagine that any professor would receive anything but praise for writing what he wrote."

Byers said, "TRU has some questions to answer. Is his suspension a result of the publication of the article? If not, they have to make it clear that it has absolutely nothing to do with the paper he published."

He called on Advanced Education Minister Melanie Mark to have Shaver answer those questions.

"TRU is a public university and its therefore accountable to the minister of advanced education," he said.

Mark declined to comment for this article.

"Academic matters are within the purview of the university," said spokesman Rodney Porter in an email. "As outlined in the University Act, it is inappropriate for a minister to interfere with academic policies and standards."

A Halifax-based advocate for academic freedom, said professors with professional tenure, such as Pyne, should be free to write critically of their universities and colleagues and it would be up to the defamed to seek redress in the courts.

Prof. Mark Mercer of the Society for Academic Freedom and Scholarship said from his Halifax office he couldn't comment without more details, and he called on the university to disclose the reasons for Pyne's discipline.

"Having a professor banned from campus is pretty serious and I hope there's public evidence to show this is a sound decision," said Mercer.

"He's been banned from campus and the university won't say why. That doesn't look like due process, it doesn't look like it's fair and transparent."

He said without more details about the discipline, "we won't be able to tell if he's been harassing colleagues or if he's a legitimate whistleblower."

He said a tenured academic should be able to write critically about the university or colleagues without fear of discipline.

“Tenure doesn’t protect someone from disciplinary actions” for criminal actions but any “if it’s defamatory, it’s up to the person defamed to take it to the courts. (Otherwise) that amounts to prior restraint.”

He said he assumed Pyne would be represented by his union in the dispute according to the collective agreement or labour laws.

Mercer said his society may get involved by writing to the university to request the facts of the case, he said.

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